

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Trevor Hackett	Team: Squad #08	CCRB Case #: 202003253	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Sunday, 05/03/2020 3:30 PM, Thursday, 05/07/2020 8:00 PM	Location of Incident: 109-15 Merrick Boulevard; unknown	18 Mo. SOL 5/4/2022	Precinct: 103		
Date/Time CV Reported Mon, 05/04/2020 10:15 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 05/13/2020 11:16 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Marvin Buckley	25275	968296	103 PCT
2. POF Karina Lucero	27425	965292	103 PCT
3. POM Christophe Messina	18635	966713	103 PCT
4. POM Lance Walter	30215	951417	PSA 1
5. Officers			
6. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Brandon Grasser	14283	955961	103 PCT
2. SGT Christen Stuve	2738	949701	103 PCT
3. POM Brian Heisinger	22186	952839	103 DET

Officer(s)	Allegation	Investigator Recommendation
A . POM Marvin Buckley	Abuse: On May 3, 2020, outside 109-15 Merrick Boulevard in Queens, Police Officer Marvin Buckley stopped § 87(2)(b)	A . Exonerated
B . POM Lance Walter	Abuse: On May 3, 2020, outside 109-15 Merrick Boulevard in Queens, Police Officer Lance Walter stopped § 87(2)(b)	B . Exonerated
C . POM Christophe Messina	Abuse: On May 3, 2020, outside 109-15 Merrick Boulevard in Queens, Police Officer Christophe Messina stopped § 87(2)(b)	C . Exonerated
D . POF Karina Lucero	Abuse: On May 3, 2020, outside 109-15 Merrick Boulevard in Queens, Police Officer Karina Lucero stopped § 87(2)(b)	D . Exonerated
E . Officers	Abuse: On May 3, 2020, outside 109-15 Merrick Boulevard in Queens, officers stopped § 87(2)(b)	E . Exonerated
F . POM Marvin Buckley	Force: On May 3, 2020, outside 109-15 Merrick Boulevard in Queens, officers used physical force against § 87(2)(b)	F . Unfounded
G . An officer	Force: On May 3, 2020, outside 109-15 Merrick Boulevard in Queens, an officer used a chokehold against § 87(2)(b)	G . Unfounded
H . Officers	Force: On May 3, 2020, outside 109-15 Merrick Boulevard in Queens, officers restricted § 87(2)(b)'s breathing.	H . Unfounded

Officer(s)	Allegation	Investigator Recommendation
I . An officer	Force: On May 3, 2020, outside 109-15 Merrick Boulevard in Queens, an officer used physical force against § 87(2)(b)	I . Unfounded
J . POM Christophe Messina	Abuse: On May 3, 2020, outside 109-15 Merrick Boulevard in Queens, Police Officer Christophe Messina frisked § 87(2)(b)	J . Exonerated
K . POF Karina Lucero	Abuse: On May 3, 2020, outside of 109-15 Merrick Boulevard in Queens, Police Officer Karina Lucero searched § 87(2)(b)	K . Substantiated
L . POM Lance Walter	Abuse: On May 3, 2020, outside 109-15 Merrick Boulevard in Queens, Police Officer Lance Walter threatened to arrest an individual.	L . Exonerated
M . An officer	Abuse: On May 7, 2020, an officer threatened § 87(2)(b) with the use of force.	M . Officer(s) Unidentified
N . Officers	Abuse: On May 7, 2020, officers stopped the vehicle in which § 87(2)(b) was an occupant.	N . Officer(s) Unidentified
O . An officer	Abuse: On May 7, 2020, an officer frisked § 87(2)(b)	O . Officer(s) Unidentified
P . An officer	Abuse: On May 7, 2020, an officer questioned § 87(2)(b)	P . Officer(s) Unidentified
Q . Officers	Abuse: On May 7, 2020, officers failed to provide § 87(2)(b) with a business card.	Q . Officer(s) Unidentified

Case Summary

On May 4, 2020, § 87(2)(b) called IAB and filed this complaint. It was received by the CCRB on May 13, 2020.

On May 3, 2020, at 3:30 p.m., § 87(2)(b) was outside a bodega located at 109-14 Merrick Boulevard in Queens, when he was stopped by officers, including Police Officer Marvin Buckley, Police Officer Lance Walter, Police Officer Christophe Messina, and Police Officer Karina Lucero from the 103rd Precinct (**Allegation A, B, C, D, and E: Abuse of Authority, exonerated**). Police Officer Marvin Buckley grabbed § 87(2)(b) and allegedly took him to the ground (**Allegation F: Force, unfounded**). Multiple officers allegedly got on top of § 87(2)(b) and put their feet and knees on his back, and an officer allegedly put their forearm against the back of § 87(2)(b) neck and pushed it into the ground, restricting his breathing (**Allegations G and H: Force, unfounded**). While § 87(2)(b) was handcuffed on the ground, an officer allegedly kicked § 87(2)(b) in his left eye (**Allegation I: Force, unfounded**). Police Officer Christopher Messina frisked § 87(2)(b) and Police Officer Karina Lucero searched § 87(2)(b) fanny pack (**Allegation J: Abuse of Authority, exonerated; Allegation K: Abuse of Authority, substantiated**). While at the location PO Walter threatened to arrest § 87(2)(b) (**Allegation L: Abuse of Authority, exonerated**).

§ 87(2)(b) was released from the 103rd Precinct with a summons for § 87(2)(b) (Board Review 55).

Body-worn camera footage was obtained from the NYPD and is in IAs #98-122 and IA #150 (**Board Review 01-26**) and is summarized in IAs #123-147 and IA #152 (**Board Review 27-52**).

The 911 call audio was obtained from the NYPD. The audio file is located in IA #159 and summarized in IA #162 (**Board Review 74, 75**).

On May 7, 2020, at approximately 8:30 p.m., at an unknown location, § 87(2)(b) was riding his bicycle when an officer inside an unmarked car said, “Stop that bike before I hit you off the bike!” (**Allegations M and N: Abuse of Authority, officer(s) unidentified**). Three officers got out of the car and the officer who had threatened § 87(2)(b) squeezed the outside of his fanny pack (**Allegation O: Abuse of Authority, officer unidentified**). He said, “It feels like you’ve got a lot of weed in here” (**Allegation P: Abuse of Authority, officer unidentified**). The officers let § 87(2)(b) off with a warning, got back in the car, and left. None of the officers provided § 87(2)(b) with a business card (**Allegation Q: Abuse of Authority, officers unidentified**).

There is no video evidence for this incident date.

Findings and Recommendations

Allegation A - Abuse of Authority: On May 3, 2020, outside 109-15 Merrick Boulevard in Queens, Police Officer Marvin Buckley stopped § 87(2)(b)

Allegation B - Abuse of Authority: On May 3, 2020, outside 109-15 Merrick Boulevard in Queens, Police Officer Lance Walter stopped § 87(2)(b)

Allegation C - Abuse of Authority: On May 3, 2020, outside 109-15 Merrick Boulevard in Queens, Christopher Messina stopped § 87(2)(b)

Allegation D - Abuse of Authority: On May 3, 2020, outside 109-15 Merrick Boulevard in Queens, Police Officer Karina Lucero stopped § 87(2)(b)

Allegation E - Abuse of Authority: On May 3, 2020, outside 109-15 Merrick Boulevard in Queens, officers stopped § 87(2)(b)

Allegation J - Abuse of Authority: On May 3, 2020, outside 109-15 Merrick Boulevard in

Queens, Police Officer Christopher Messina frisked § 87(2)(b).
Allegations K - Abuse of Authority: On May 3, 2020, outside of 109-15 Merrick Boulevard in
Queens, Police Officer Karina Lucero searched § 87(2)(b)

Audio of the 911 call shows that the caller reports that § 87(2)(b) “pulled a gun on him” at the Gourmet Deli located at the intersection of 109th Road and Merrick Boulevard in the Bronx. The caller states that the suspect was a Hispanic man wearing a du-rag. The caller states that he cannot provide any further information as he was too scared to notice what else the suspect was wearing. The caller states his last name as “§ 87(2)(b)” and provides a call back number. The caller then states that he is leaving the location and does not want to meet with police. The caller states that the suspect appeared drunk and that he does not believe he works in the store **(Board Review 74)**.

Event documents were generally consistent with the 911 call and show, at 15:40:15, § 87(2)(b) called 911 to report a Hispanic man wearing a du-rag displayed a firearm at Gourmet Deli, located at 109th Avenue and Merrick Boulevard. The caller does not provide any further information regarding the suspect’s description but says that the suspect is intoxicated and still inside the store. The caller provides his name but refuses to meet with officers and says he is leaving the location. At 15:44:07, a male is reported as stopped **(Board Review 53)**.

BWC from PO Messina shows at 00:15, visible on the media player at the bottom of the screen, shows PO Messina and multiple other officers arrive at the location, which prompts § 87(2)(b) a light skinned black man wearing a du-rag, and who is in the crosswalk across from the store where the incident was reported, to flee in response. At 00:21, § 87(2)(b) is apprehended by multiple officers and is handcuffed on the ground. At 00:46, PO Lucero can be heard saying “Hold him. Search him.” PO Messina proceeds to put his hands on § 87(2)(b) legs and waistband area before patting down his right pants pocket. At 01:26, PO Messina can be seen grabbing § 87(2)(b) right pants pocket. The time stamp at the top right corner of the screen shows that officers arrive at the location and approach § 87(2)(b) at 15:43:00 **(Board Review 04)**.

BWC from PO Lucero shows at 00:53, that PO Lucero takes § 87(2)(b) red fanny pack, unzips two separate pouches, and looks inside each one. At 01:53, PO Lucero walks to her police vehicle and while still holding the fanny pack says, “As soon as he saw us, he ran. He has nothing though. I looked in here.” At 02:09, § 87(2)(b) has been lifted to his feet and PO Messina can be seen reaching his hand into § 87(2)(b) right pants pocket. At 02:39, PO Walter frisks § 87(2)(b) hoodie pockets, his legs, and his pants pockets. At 04:05, § 87(2)(b) is taken to a police vehicle and is driven back to the stationhouse **(Board Review 05)**.

§ 87(2)(b) statement was somewhat consistent with the BWC. On May 3, 2020, at 3:30 p.m., at 109-14 Merrick Boulevard in Queens, § 87(2)(b) was listening to music with headphones outside a bodega and smoking a cigarette for about an hour. § 87(2)(b) was with a friend who he knows only as “§ 87(2)(b)” who was also listening to music and smoking a cigarette. There were about five other people outside the bodega, but § 87(2)(b) did not know any of them. § 87(2)(b) and § 87(2)(b) did not speak to anyone else or hand anything between them. § 87(2)(b) did not have a weapon of any kind on his person. § 87(2)(b) went into the bodega to get additional cigarettes but otherwise did not do anything. § 87(2)(b) was not smoking marijuana but acknowledged having five “dime bags” of marijuana inside a larger bag in his fanny pack, as well a hand sanitizer bottle small enough to fit in the palm of his hand and his identification. § 87(2)(b) had money in the left and right pockets of his jeans and in a red fanny pack worn on his side, totaling about 500 dollars. The money was not in a roll, wallet or money clip and was in varying denominations. Two plainclothes officers drove by in an unmarked police vehicle and one of the officers was staring at § 87(2)(b) and said “Hi, how are you doing?” § 87(2)(b) did not respond, crossed the street with § 87(2)(b) and stood outside 109-15 Merrick Boulevard. Several unmarked cars pulled up to the

location with their sirens activated. § 87(2)(b) began walking away from the officers, one of whom ordered § 87(2)(b) not to run. § 87(2)(b) complied and stopped walking at which point an officer took him to the ground. § 87(2)(b) did not make any movements prior to this and did not reach for his waistband. § 87(2)(b) stated that once he was lifted to his feet, an officer stated that he was going to be taken back to the stationhouse. An officer then searched § 87(2)(b) fanny pack and shoes, shook his pants, and reached inside all his pants pockets **(Board Review 56)**.

PO Buckley said that he and PO Lucero received a radio run about a light-skinned man with a firearm at a deli located at 109-14 Merrick Boulevard in Queens. PO Buckley did not recall any additional details of the radio run. They were at the 103rd Precinct stationhouse when the call came over and about five to ten minutes later they arrived at the location. There were already six to eight officers on scene when they arrived, chasing § 87(2)(b) north on the sidewalk on Merrick Boulevard. PO Buckley got out of the car and chased § 87(2)(b) based on observing the other officers in pursuit. PO Buckley had never interacted with § 87(2)(b) before this incident. PO Buckley did not recall whether it appeared if § 87(2)(b) was armed as he could not see the front of § 87(2)(b) body as he was running. § 87(2)(b) was holding a fanny pack tightly underneath his arm as he ran, which PO Buckley believed could have been a firearm. § 87(2)(b) was apprehended and handcuffed. PO Buckley stated that PO Lucero searched § 87(2)(b) fanny pack, though he did not know what if any contraband was recovered from § 87(2)(b). PO Buckley did not know where else, if anywhere, § 87(2)(b) was searched. A sergeant at the scene determined that § 87(2)(b) would be transported back to the stationhouse. The 911 caller who reported the firearm never arrived on scene to identify § 87(2)(b) **(Board Review 57)**.

§ 87(2)(g). PO Messina believed § 87(2)(b) was armed because as he ran he held his fanny pack very tightly under his arm, which PO Messina believed could have contained a weapon. PO Messina could not see the front of § 87(2)(b) body prior to when he was handcuffed and was unsure if there were any bulges or other signs that § 87(2)(b) may have been armed. PO Messina acknowledged frisking § 87(2)(b) while he was handcuffed on the ground but denied searching him. PO Messina did not see or feel anything during the frisk which he believed to be a weapon **(Board Review 58)**.

§ 87(2)(g) PO Lucero and PO Buckley responded to a call for backup associated with a report of a firearm. The requesting officers stated that they had seen the suspect in the area and that he was running from officers. PO Lucero did not know which officers requested back up. PO Lucero did not recall the description of the suspect provided in the radio run. PO Lucero arrived at the location less than a minute later and saw § 87(2)(b) running from PO Messina and PO Walter. PO Lucero observed § 87(2)(b) wearing a fanny pack, though it did not appear that he was attempting to conceal it while he fled. Once § 87(2)(b) was apprehended, PO Lucero assisted in handcuffing § 87(2)(b) while he was on the ground. No officer told PO Lucero that § 87(2)(b) was being arrested, but rather she inferred that this was the case as § 87(2)(b) was being handcuffed.

PO Lucero did not frisk or search § 87(2)(b) person but did search his fanny pack, which was small enough to fit in one hand and made of bright-colored cloth and worn around § 87(2)(b) chest. PO Lucero held the bag and squeezed it, then opened it and searched inside to find § 87(2)(b) identification. After squeezing, PO Lucero did not feel anything that she thought was a weapon before opening the bag. The fanny pack was large enough to potentially contain a gun. Other than the nature of the radio run, there was nothing leading PO Lucero to believe there was a gun in the fanny pack. Other than the fanny pack, PO Lucero did not see any bulges on § 87(2)(b) person or anything else that led her to conclude by looking at him that he was armed. PO Lucero searched § 87(2)(b) fanny pack to ensure there was no firearm because the call had been

about a firearm and § 87(2)(b) had run from the officers. PO Lucero believed that there may have been marijuana in § 87(2)(b) fanny pack but was unsure if any other illegal items were recovered from § 87(2)(b) or at the scene. A sergeant ultimately made the decision to remove § 87(2)(b) to the stationhouse, though PO Lucero could not recall who this was as there were multiple sergeants on scene **(Board Review 59)**.

§ 87(2)(g) . PO Walter acknowledged frisking § 87(2)(b) and said that he did so because at that point, it had been determined that § 87(2)(b) was under arrest and was going to be transported back to the stationhouse. PO Walter was sure that § 87(2)(b) was procedurally searched prior to being transported back to the stationhouse, though he did not recall whether he did so himself. PO Walter did not recall asking § 87(2)(b) if he had a gun but said that the nature of the 911 call in addition to § 87(2)(b) flight from the location would have been grounds to do so **(Board Review 62)**.

§ 87(2)(g) . Sgt. Hallahan did not observe any officers search § 87(2)(b) but believed this occurred prior to his arrival at the scene as § 87(2)(b) had already been arrested. Sgt. Hallahan made the determination to transport § 87(2)(b) back to the stationhouse based on the marijuana which was recovered and for the officers' safety as there was an unruly crowd which had formed at the location **(Board Review 61)**.

A stop report associated with the incident was obtained and was generally consistent with civilian and officer statements as well as the BWC footage. The report states that upon seeing the officers, § 87(2)(b) moved his arm in an "irregular manner" in an attempt to conceal a red fanny pack which was strapped across his chest **(Board Review 54)**.

An officer may stop a person when the officer has a reasonable suspicion that the person has committed, is committing, or is about to commit a felony or misdemeanor. People v. DeBour, 40 N.Y. 2d 210, 233 (1976) **(Board Review 63)**.

A defendant's flight in response to an approach by the police, combined with other specific circumstances indicating that the suspect may be engaged in criminal activity, may give rise to reasonable suspicion, the necessary predicate for police pursuit. People v. Parker, 32 N.Y.3d 49 **(Board Review 64)**. The common-law right to inquire is activated by a founded suspicion that criminal activity is afoot and permits a somewhat greater intrusion in that a policeman is entitled to interfere with a citizen to the extent necessary to gain explanatory information, but short of a forcible seizure.

An officer may frisk an individual when they reasonably suspect that the individual may be armed and present a risk of harm to the officer. If an apparent weapon is revealed during a frisk, a limited search may be conducted only of the area where the apparent weapon was discovered People v. DeBour, 40 N.Y.2d 210 (1976) **(Board Review 63)**.

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It is therefore recommended that **allegations A, B, C, D, E and J** be closed as **exonerated**.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **allegation K** be closed as **substantiated**.

Allegation F - Force: On May 3, 2020, outside 109-15 Merrick Boulevard in Queens, Police Officer Marvin Buckley used physical force against § 87(2)(b)

Allegation G – Force: On May 3, 2020, outside 109-15 Merrick Boulevard in Queens, an officer used a chokehold against § 87(2)(b)

Allegation H - Force: On May 3, 2020, outside 109-15 Merrick Boulevard in Queens, officers restricted § 87(2)(b) breathing.

Allegation I – Force: On May 3, 2020, outside 109-15 Merrick Boulevard in Queens, an officer used force against § 87(2)(b)

BWC from PO Lucero shows at 00:09, visible on the media player at the bottom of the screen, PO Buckley approaches § 87(2)(b) from the side while he is running. In an attempt to change direction, § 87(2)(b) appears to fall to the ground on his own, landing on his rear. It is unclear what, if any contact PO Buckley makes with § 87(2)(b). At 00:15, PO Lucero as well as several other officers grab § 87(2)(b) and turn him on his right side and hand-cuff him. PO Lucero is the only officer positioned near § 87(2)(b) head while he is being handcuffed. The footage captures a view of § 87(2)(b) back while he is being handcuffed and shows that no officer is on top of him or putting their feet on his back. At no point does any officer strike § 87(2)(b) while he is handcuffed. At 00:38, a small red mark is visible on § 87(2)(b) cheek, though it is unclear when or how he received this **(Board Review 05)**.

BWC from PO Buckley captures the same period in time from a separate angle and shows, at 00:00, PO Lucero, who is kneeling on the ground near § 87(2)(b) head, does not make contact with § 87(2)(b) neck at any point and shows that no officer strikes § 87(2)(b) while he is handcuffed **(Board Review 06)**.

BWC from PO Messina covers the same period in time from a separate angle. At 00:26, PO Messina assists in restraining and handcuffing § 87(2)(b) while he is on the ground. and does not

capture any officer kick § 87(2)(b) while he is handcuffed on the ground (**Board Review 04**).

§ 87(2)(g) § 87(2)(b) stated that he began walking away from officers when they arrived at the location. PO Buckley exited his police vehicle and ordered § 87(2)(b) not to run. § 87(2)(b) complied and stopped walking. PO Buckley grabbed § 87(2)(b) by the underarms of his sweatshirt threw him over his leg and slammed him into the ground. § 87(2)(b) wrist was scraped, and he landed on his face. § 87(2)(b) also received a bruise on his shoulder. Approximately, 10 officers jumped on top of § 87(2)(b) and handcuffed him. After § 87(2)(b) was handcuffed, an officer kicked § 87(2)(b) once under his left eye, causing a small laceration. § 87(2)(b) did not resist or try to get away from the officers at any point. In a follow up statement, § 87(2)(b) alleged that when the officers got on top of him, they put their feet and knees on his back, and an officer put their arm on the back of § 87(2)(b) neck, obstructing his breathing. § 87(2)(b) could not see which officer did this because he was not facing them (**Board Review 56**).

§ 87(2)(g) PO Lucero believed that § 87(2)(b) tripped and fell to the ground on his own but said she was ultimately unsure of this. PO Lucero did not recall any officer, including herself, putting pressure on § 87(2)(b) neck or kicking § 87(2)(b) while he was on the ground. She did not recall whether § 87(2)(b) complained of having difficulty breathing but did not believe this was the case as § 87(2)(b) was speaking throughout the incident (**Board Review 59**).

§ 87(2)(g) . PO Buckley denied taking § 87(2)(b) to the ground and stated that as he approached him, § 87(2)(b) attempted to turn, lost his balance, and fell to the ground on his own (**Board Review 57, 58**).

§ 87(2)(b) provided photos of his injuries when he filed this complaint with IAB. § 87(2)(b) sustained a small scrape under his left cheekbone as well as scrapes on his right shoulder (**Board Review 65, 66, 67**).

§ 87(2)(g) As such, it is recommended that **allegation F** be closed as **unfounded**.

§ 87(2)(g) . It is therefore recommended that **allegations G, H, and I** be closed as **unfounded**.

Allegation L – Abuse of Authority: Police Officer Lance Walter threatened to arrest an individual.

§ 87(2)(b) did not allege that PO Walter threatened to arrest anyone at the location. This allegation was captured on PO Walter’s BWC.

PO Walter’s BWC captures, at 05:35, visible on the media player at the bottom of the screen, an individual standing in the street say to Sgt. Hallahan, “I’m going to fucking bust you in your face.” Sgt. Hallahan responds, “For what, bro? You come over here and start problems with me?” The man says, “I ain’t starting no problems but if you lock someone like me up, you’ll have a

fucking problem, trust me.” PO Walter twice states, “Get out of here before I lock you up” **(Board Review 01)**

§ 87(2)(g). He acknowledged threatening to arrest the individual and stated that the individual could have been arrested for obstructing governmental administration for continuously moving closer to officers while they were canvassing the area, and disorderly conduct for being intoxicated and standing in the street. PO Walther believed that the bottle that the individual was holding contained alcohol **(Board Review 62)**.

A person is guilty of harassment in the second degree when, with intent to harass, annoy or alarm another person he or she strikes, shoves, kicks or otherwise subjects such other person to physical contact, or attempts or threatens to do the same (New York Penal Law 240.26) **(Board Review 60)**.

§ 87(2)(g)
It is therefore recommended that **allegation L** be closed as exonerated.

Allegation M: On May 7, 2020, officers stopped § 87(2)(b)
Allegation N: On May 7, 2020, an officer threatened § 87(2)(b) with the use of force.
Allegation O: On May 7, 2020, an officer frisked § 87(2)(b)
Allegation P: On May 7, 2020, an officer questioned § 87(2)(b)
Allegation Q: On May 7, 2020, officers failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) stated that on May 7, 2020, at approximately 9:00 p.m., at a location he could not recall, he was riding his bicycle when an officer said, “Stop that bike before I hit you off the bike!” from inside an unmarked car. § 87(2)(b) was wearing black sweatpants, a black hooded sweatshirt, and a mask, as well as his red fanny pack. PO1 was driving the car. PO1, PO2, and PO3 got out of the car. PO2 felt the outside of § 87(2)(b) fanny pack. He said, “It feels like you’ve got a lot of weed in here.” § 87(2)(b) acknowledged that he smokes marijuana and that he had marijuana in the fanny pack. PO2 said, “We see you every day, we know what you’re doing.” PO1 said they stopped § 87(2)(b) because he was not wearing a bicycle helmet and had no lights on his bicycle and that it was dangerous for him to not be visible. The officers did not issue § 87(2)(b) a summons or arrest him as a result of this incident. The officers did not search anywhere else on § 87(2)(b) person aside from the fanny pack. § 87(2)(b) described PO1 as a white man, about 5’5” tall, heavyset, bald, dressed in uniform with white shirt. PO2 was described as a heavyset white man with a beard and mustache, with a medium-sized Afro haircut, wearing a black hat. PO3 was described as a tall, slim white man, with short hair, wearing a gray shirt and blue pants **(Board Review 56)**.

Event documents and the 103rd Precinct Stop Report Log were obtained and yielded negative results for any incidents associated with § 87(2)(b) **(Board Review 69, 68)**.

A warrant audit was obtained and revealed a search for § 87(2)(b) on May 7, 2020, conducted on a desktop by Wendy Smith. A CTS search yielded negative results for any active or inactive members of service by this name **(Board Review 70)**.

None of the officers interviewed for this case had any recollection of interacting with § 87(2)(b)

on this date.

§ 87(2)(g)

. It is therefore recommended that **allegations M-Q** be closed as **officer(s) unidentified**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 73**).
- PO Buckley has been a member of service for less than a year, and this is the first CCRB complaint in which he has been named as a subject.
- PO Lucero has been a member of service for two years and has been named as a subject in two CCRB complaints and a total of six allegations, none of which were substantiated.
- PO Messina has been a member of service for one year, and this is the first CCRB complaint in which he has been named as a subject.
- PO Walter has been a member of service for nine years and has been named as a subject in eight CCRB complaints and a total of 13 allegations, one of which was substantiated.
 - #201802606 involved a substantiated allegation of a gun pointed. The Board recommended Command Discipline A, and the NYPD imposed Command Discipline A.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- As of July 1, 2021, the New York City Office of the Comptroller has not received a Notice of Claim related to this complaint (**Board Review 72**).

§ 87(2)(b) [§§ 86(1)(3)&(4)] § 87(2)(c)

Squad No.: 8

Investigator:	<u>Trevor Hackett</u>	<u>Inv. Trevor Hackett</u>	<u>03/17/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Ethan De Angelo</u>	<u>IM Ethan De Angelo</u>	<u>3/17/2022</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date